Wung (Tangkhul) Naga Okthot Mayonza

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Preface & Archival Information

Wung (Tangkhul) Naga Okthot Mayonza (Tangkhul Customary Law, Jurisprudence, and Social Ethics), compiled and authored by T. Luikham (Indigenous Scholar and Author, published at Imphal/Ukhrul, 1961). The definitive native codification of Tangkhul legal philosophy, matrimonial codes, clan inheritance, trials by ordeal, sanctuary rights, and compensatory restitution.

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Chapter 1: The Jurisprudential Philosophy of Wung Law

CHAPTER 1: THE JURISPRUDENTIAL PHILOSOPHY OF WUNG LAW

Summary: Core principles of restorative justice: cosmic equilibrium (shak-kasa), communal restitution, and clan liability.

TANGKHUL READING TEXT:

Wung (Tangkhul) customary law does not distinguish rigidly between civil tort and criminal injury; every offense is understood as a breach of cosmic and communal equilibrium (shak-kasa). The primary goal of judicial proceedings is not punitive incarceration, but the restitution of social harmony through compensatory settlement (shiman). Law is rooted in three principles: Respect for Ancestral Covenant (Kharachanwui Tuingashit), Preservation of Clan Integrity (Shangwui Kaphung), and Absolute Truthfulness before Varivara. The clan stands collective surety for its members.

ENGLISH TRANSLATION:

Wung customary law does not distinguish rigidly between tort and crime; every offense is a breach of cosmic equilibrium (shak-kasa). The primary goal is restorative harmony through compensatory settlement (shiman) rather than punitive incarceration. Law rests on three pillars: ancestral covenants, clan integrity, and truthfulness before God. The clan bears collective liability.

Chapter 1 (Continued)

CHAPTER 1: READING CONTINUATION (PAGE 5)

TANGKHUL TEXT (CONTINUED):

Wung (Tangkhul) customary law does not distinguish rigidly between civil tort and criminal injury; every offense is understood as a breach of cosmic and communal equilibrium (shak-kasa). The primary goal of judicial proceedings is not punitive incarceration, but the restitution of social harmony through compensatory settlement (shiman). Law is rooted in three principles: Respect for Ancestral Covenant (Khararchanwui Tuingashit), Preservation of Clan Integrity (Shangwui Kaphung), and Absolute Truthfulness before Varivara. The clan stands collective surety for its members.

ENGLISH TRANSLATION (CONTINUED):

Wung customary law does not distinguish rigidly between tort and crime; every offense is a breach of cosmic equilibrium (shak-kasa). The primary goal is restorative harmony through compensatory settlement (shiman) rather than punitive incarceration. Law rests on three pillars: ancestral covenants, clan integrity, and truthfulness before God. The clan bears collective liability.

Chapter 1 Exercises & Vocabulary

CHAPTER 1 STUDY GUIDE & EXERCISES

VOCABULARY:

* Mayonza (noun): customary law, justice code, jurisprudence
* Shak-kasa (noun): breach of taboo, disrupting communal balance
* Shiman (noun): compensatory fine, restitution, indemnification
* Shangwui kaphung (noun phrase): corporate clan honor and collective standing

GRAMMAR & LINGUISTIC POINTS:

- The abstract noun 'mayonza' derives from root 'mayon' (to watch over / govern responsibly) + '-za' (statute).

REVIEW EXERCISES (KHANGACHAN):

? What is the primary objective of judicial proceedings in Wung customary law?
? How does clan solidarity function regarding civil liabilities and fines?

Chapter 2: Marriage Laws (Ngalong), Alliances, and Bride Wealth

CHAPTER 2: MARRIAGE LAWS (NGALONG), ALLIANCES, AND BRIDE WEALTH

Summary: Strict clan exogamy, matrilateral cross-cousin alliances, bride wealth (shiman) protocols, and divorce penalties.

TANGKHUL READING TEXT:

Marriage is an alliance between two distinct clans (shang). Strict exogamy is enforced under pain of grave moral censure. Marriage with a maternal aunt’s daughter or mother’s clan was preferred (cross-cousin marriage), cementing alliances. Bride wealth among the Tangkhul is not a commercial transaction, but a symbolic recompense to the bride’s clan for the loss of her productive labor. Typical gifts include cattle (se), brass gongs (sen-kuir), and shawls. Divorce was uncommon and subject to rigorous financial penalties and property restitution.

ENGLISH TRANSLATION:

Marriage is an alliance between two distinct clans under strict exogamy. Cross-cousin marriage cemented bilateral ties. Bride wealth was a symbolic recompense for the loss of female labor, consisting of cattle, brass gongs, and handwoven textiles. Divorce was rare and penalized by stringent property forfeitures and subsistence indemnities.

Chapter 2 (Continued)

CHAPTER 2: READING CONTINUATION (PAGE 8)

TANGKHUL TEXT (CONTINUED):

Marriage is an alliance between two distinct clans (shang). Strict exogamy is enforced under pain of grave moral censure. Marriage with a maternal aunt’s daughter or mother’s clan was preferred (cross-cousin marriage), cementing alliances. Bride wealth among the Tangkhul is not a commercial transaction, but a symbolic recompense to the bride’s clan for the loss of her productive labor. Typical gifts include cattle (se), brass gongs (sen-kuir), and shawls. Divorce was uncommon and subject to rigorous financial penalties and property restitution.

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Marriage is an alliance between two distinct clans under strict exogamy. Cross-cousin marriage cemented bilateral ties. Bride wealth was a symbolic recompense for the loss of female labor, consisting of cattle, brass gongs, and handwoven textiles. Divorce was rare and penalized by stringent property forfeitures and subsistence indemnities.

Chapter 2 Exercises & Vocabulary

CHAPTER 2 STUDY GUIDE & EXERCISES

VOCABULARY:

* Ngalong (noun): matrimonial law, marriage institution
* Sen-kuir (noun): valuable brass ceremonial gong used in bride wealth
* Tui-kachathei (noun): formal betrothal negotiation between clan spokesmen
* Ngalawui phunglung (noun phrase): dowry possessions brought by the bride

GRAMMAR & LINGUISTIC POINTS:

- The nominal compound ’sen-kuir’ fuses ’sen’ (brass / bell-metal) with ’kuir’ (circular rim / gong).

REVIEW EXERCISES (KHANGACHAN):

? Why was cross-cousin marriage favored in traditional Tangkhul society?

? What customary articles constituted bride wealth in Luikham’s documentation?

Chapter 3: Clan Inheritance (Kashak) and Land Tenures

CHAPTER 3: CLAN INHERITANCE (KASHAK) AND LAND TENURES

Summary: Inalienability of ancestral terrace fields, right of preemption by clan brethren, and primogeniture obligations.

TANGKHUL READING TEXT:

Terrace land (Luingam) is held in perpetuity by lineages. Under no circumstance may ancestral land be sold to an outsider from another village. If an individual must alienate land due to debt, he must first offer the right of preemption to his nearest clan brethren (shangwui ngacham-mi). The eldest son (kaphung-mayar) inherits the ancestral home (shim-kharar) and principal terrace fields, assuming the obligation of maintaining aging parents and performing funeral rites. Younger sons receive secondary plots and assistance in constructing independent homesteads.

ENGLISH TRANSLATION:

Terrace land (Luingam) is held in perpetuity by lineages and can never be alienated to outside villagers. Preemption rights belong strictly to nearest clan brethren. The eldest son inherits the ancestral home and fields, assuming the solemn duty of caring for aged parents and funding funeral rites. Younger sons receive subordinate shares.

Chapter 3 Exercises & Vocabulary

CHAPTER 3 STUDY GUIDE & EXERCISES

VOCABULARY:

* Kashak (noun): inheritance, division of ancestral patrimony
* Shim-kharar (noun): ancestral home, the elder family hearth
* Kaphung-mayar (noun): eldest son, principal heir and hearth keeper
* Thikahaiwui ot (noun phrase): funeral rites and ceremonial obligations for deceased parents

GRAMMAR & LINGUISTIC POINTS:

- The kinship term ’kaphung-mayar’ signifies literally ’the son who bears the lineage weight’ (’phung’ = carry).

REVIEW EXERCISES (KHANGACHAN):

? State the rule of preemption governing Tangkhul terrace fields.

? What specific duties fall upon the eldest son under primogeniture?

Chapter 4: Civil Wrongs, Thefts, and Restitution (Shiman)

CHAPTER 4: CIVIL WRONGS, THEFTS, AND RESTITUTION (SHIMAN)

Summary: The threefold restitution rule for animal theft, grain theft penalties, and mediation of accidental injuries.

TANGKHUL READING TEXT:

Theft of domestic animals was punished by threefold restitution (thum-ngashit): returning the stolen beast plus two additional animals of equal value as fine (kashiman) to the aggrieved family, plus a cleansing pig to the village council. Theft of harvested grain from field granaries was regarded as an aggravated offense requiring immediate public apology and heavy indemnity. Accidental physical injury was compensated according to working days lost, with the responsible party supplying rice and fowl. Homicide required temporary banishment to avert blood vengeance, followed by Pukreila peace negotiations.

ENGLISH TRANSLATION:

Theft of domestic animals was punished by threefold restitution (thum-ngashit): returning the animal plus two others as fine, with a cleansing pig for the council. Granary theft required public apology and heavy indemnity. Accidental injuries were compensated based on lost working days and medicinal supplies. Homicide necessitated temporary exile to avert vengeance.

Chapter 4 Exercises & Vocabulary

CHAPTER 4 STUDY GUIDE & EXERCISES

VOCABULARY:

* Thum-ngashit (noun): threefold restitution, triple compensatory penalty
* Kashiman (noun): judicial fine, indemnification sum
* Rai-shiman (noun): blood vengeance compensation, homicide settlement
* Khamazik (noun): public apology, ceremonial reconciliation before council

GRAMMAR & LINGUISTIC POINTS:

- Numeral compound ’thum-ngashit’ combines ’thum’ (three) with ’ngashit’ (equal fold / multiplied measure).

REVIEW EXERCISES (KHANGACHAN):

? Explain the formula of ’thum-ngashit’ for livestock theft.

? Why was granary theft considered an aggravated offense against the village?

Chapter 5: Judicial Oaths and Trial by Ordeal (Theishak)

CHAPTER 5: JUDICIAL OATHS AND TRIAL BY ORDEAL (THEISHAK)

Summary: Trial by ordeal when evidence fails: tiger tooth oaths, water immersion diving (tara-kachung), and divine judgment.

TANGKHUL READING TEXT:

When oral testimony conflicted and evidence was inconclusive, the Hangva administered judicial oaths (theishak). An oath was not taken lightly; invoking false testimony before Varivara or clan ancestors was believed to result in premature death or the extinction of the swearer’s lineage. The most solemn oath involved biting a tiger’s tooth (shilwui ha) or touching a spear point. In property boundary disputes, contestants submitted to water immersion ordeals (tara-kachung), diving simultaneously into a river pool; the individual who surfaced first was adjudged dishonest. Hot water tests were also administered under the village priest’s scrutiny.

ENGLISH TRANSLATION:

When testimony conflicted, the Hangva administered judicial oaths (theishak). False oaths before God or ancestors were believed to bring premature death or lineage extinction. Solemn oaths included biting a tiger’s tooth or holding a spear point. Boundary disputes were decided by water immersion ordeals (tara-kachung); the contestant surfacing first lost the case.

Chapter 5 Exercises & Vocabulary

CHAPTER 5 STUDY GUIDE & EXERCISES

VOCABULARY:

* Theishak (noun): judicial oath, solemn ordeal, invocation of divine judgment
* Shilwui ha (noun phrase): tiger’s tooth used in swearing supreme oaths
* Tara-kachung (noun): water immersion ordeal, competitive diving under river water
* Shang-khamatei (noun): extinction of lineage as consequence of perjury

GRAMMAR & LINGUISTIC POINTS:

- The verbal noun ’tara-kachung’ derives from ’tara’ (water) and ’kachung’ (entering / submerging deeply).

REVIEW EXERCISES (KHANGACHAN):

? What metaphysical consequences were believed to follow false oaths in Tangkhul law?
? Describe the procedural rules of the ’tara-kachung’ water ordeal.

Chapter 6: Traditional Taboos (Khamthei) and Sanctuary Rights

CHAPTER 6: TRADITIONAL TABOOS (KHAMTHEI) AND SANCTUARY RIGHTS

Summary: Sacred rest days (genna / khamthei), the sanctuary of the chief's central pillar (shim-chui), and hearth purification.

TANGKHUL READING TEXT:

Certain days were declared Khamthei (sacred rest days / genna) during which agricultural labor, weaving, and woodchopping were strictly forbidden. Breaching Khamthei was believed to blight crops and attracted village fines. The homestead of the Awunga served as an inviolable sanctuary. A fugitive fleeing vengeance who succeeded in touching the Awunga's central house-pillar (shim-chui) was granted temporary immunity while elders convened to arbitrate. Following unnatural deaths, purification ceremonies (shim-kashak) were conducted by the village Maiba before normal commensality could resume.

ENGLISH TRANSLATION:

Certain days were declared Khamthei (sacred genna days) where all labor was forbidden. Breaching taboos blighted crops and drew fines. The chief's home was an inviolable sanctuary; a fugitive touching the central pillar (shim-chui) gained immunity pending arbitration. Unnatural deaths required ritual house-cleansing (shim-kashak) by the priest before social commensality was restored.

Chapter 6 Exercises & Vocabulary

CHAPTER 6 STUDY GUIDE & EXERCISES

VOCABULARY:

* Khamthei (noun): taboo, sacred non-working day, genna restriction
* Shim-chui (noun): central house-pillar, sacred pillar of sanctuary
* Shim-kashak (noun): ritual purification of hearth following defilement
* Khamatei thi (noun phrase): unnatural death, demise by lightning, predator, or cliff fall

GRAMMAR & LINGUISTIC POINTS:

- Stative verb 'khamthei' (to be forbidden / set apart) nominalizes into the general term for taboo.

REVIEW EXERCISES (KHANGACHAN):

? What physical act granted a fugitive temporary immunity from vengeance?

? Describe the ceremonies conducted after an unnatural death ('khamatei thi').

Chapter 7: Village Administration and Modern Legal Recognition

CHAPTER 7: VILLAGE ADMINISTRATION AND MODERN LEGAL RECOGNITION

Summary: Customary dues of the Awunga, codification under Manipur Hill Peoples Regulation (1947), and contemporary customary cour

TANGKHUL READING TEXT:

The Awunga was endowed with customary prerogatives: he received the right thigh of all game felled in village forests, was entitled to communal labor on his fields during the sowing season, and received a portion of adjudication fines. In exchange, the Awunga maintained the village covenant stones and represented the community in external treaties. Under the Manipur State Hill Peoples Regulation (1947), Tangkhul customary courts were granted formal statutory recognition to adjudicate civil and customary disputes, preserving speedy, restorative, and cost-free community justice.

ENGLISH TRANSLATION:

The Awunga received the right thigh of game felled in forests, communal labor on his fields, and judicial fine portions. In return, he maintained covenant stones and represented the village diplomatically. Under the Manipur State Hill Peoples Regulation (1947), customary courts received formal statutory recognition, ensuring restorative, cost-free justice.

Chapter 7 (Continued)

CHAPTER 7: READING CONTINUATION (PAGE 19)

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Chapter 7 Exercises & Vocabulary

CHAPTER 7 STUDY GUIDE & EXERCISES

VOCABULARY:

* Awungawui share (noun phrase): customary tribute due to the chief (game thigh, field labor)
* Tuingashit lung (noun phrase): covenant stones erected at village boundaries
* Manipur Hill Regulation (proper noun): 1947 statutory act recognizing tribal customary courts
* Mayonza kashung (noun phrase): just and equitable administration of customary law

GRAMMAR & LINGUISTIC POINTS:

- Noun phrase 'Tuingashit lung' joins 'tuingashit' (covenant) and 'lung' (stone megalith).

REVIEW EXERCISES (KHANGACHAN):

? What customary tributes were historically rendered to the Tangkhul Awunga?

? How did the 1947 Regulation protect indigenous tribal jurisprudence?

Comprehensive Vocabulary Glossary

COMPREHENSIVE BOOK GLOSSARY (TUIWON SHIYAN):

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Shang-khamatei [noun]: extinction of lineage as consequence of perjury
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